Gandhi *mein aag lag rahi hai bhai*," referring to the image on the Rs 500 notes

- **Varma's private secretary Rajinder Karki** led clean-up after the blaze, raising concerns about deliberate tampering. Karki talked to Justice Varma at 1:23 am on March 15, the window when evidence may have been removed
- **Varma's daughter Diya** initially admitted knowing about the burnt cash on March 15, later attempted to retract statement
- **Hard disk of CCTV camera** monitoring storeroom is missing. Panel concluded that if footage supported his claims, Varma had ample time to produce it to prove his innocence
- **When questioned by the CJI,** Justice Varma could not account for the origin/ownership of the cash allegedly found at his premises

JUSTICE VARMA'S DEFENCE

THE JUDGE HAS NOT ADMITTED GUILT AND HAS REFUSED TO RESIGN

- Denied keeping cash in the storeroom, stated that it was freely accessible via a rear gate
- Claimed his daughter and staff inspected the storeroom after the fire, found no trace of currency
- Argued that CCTV footage could have exonerated him, but the footage mysteriously disappeared
- Stressed that neither the fire brigade nor police documented or seized any cash from the site



- Cited his unblemished judicial career, argued that he had no motive/ history for wrongdoing
- Claimed he was being targeted, pointing to a coordinated social media smear campaign against him since Dec. '24

IF THE GOVT BYPASSES THE STATUTORY SAFEGUARDS FOR IMPEACHMENT, IT MAY SET PRECEDENTS THAT FUNDAMENTALLY ALTER JUDICIAL INDEPENDENCE

in India's first (unsuccessful) impeachment proceedings against an SC judge in 1991, warned, conflating the inhouse procedure with statutory requirements "undermines Justice Varma's right to a fair procedure" and violates the law itself.

The government's selective urgency becomes more apparent when contrasted with another pending impeachment. Since December 2024, 55 Rajya Sabha MPs have sought action against Justice Shekhar Kumar Yadav of the Allahabad HC for alleged inflammatory communal remarks at a Vishva Hindu Parishad (VHP) event. Six months later, Vice-President and RS chairman Jagdeep Dhankhar claims he's still verifying signatures. Meanwhile, Dhankhar wrote to the CJI asking him not to proceed with an inhouse inquiry against Justice Yadav, yet he now champions swift action against Justice Varma based solely on such an inquiry.

THE DEEPER GAME

The impeachment drama is also set to become a test case in the ongoing struggle between India's judiciary and the Modi government. Since the SC struck down the National Judicial Appointments Commission (NJAC) in 2015, declaring it unconstitutional for giving the executive too much power over judicial appointments, tensions have escalated. The government has chafed at the collegium system, where judges appoint judges, viewing it as unaccountable. Various ministers and even V-P Dhankhar have publicly criticised judicial overreach and called for greater executive oversight. The Varma case provides potent ammunition. Here's a judge with unexplained cash, and the judiciary's own investigation found him guilty. What better argument for external oversight?

Yet the implications run deeper. Some experts say that by accepting an inhouse report as grounds for impeachment, by bypassing statutory safeguards, the government could set precedents that fundamentally alter judicial independence. Today's weapon against allegedly corrupt judges could be-